

**Combined Synopsis/Solicitation
W91151-26-Q-A013
(Roman Catholic Religious Educator Coordinator)**

This is a combined synopsis/solicitation for commercial products prepared in accordance with the format in FAR Subpart 12.6 and 13.5, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; quotes are being requested and a written solicitation will not be issued. The solicitation number is W91151-26-Q-A013. This combined synopsis/solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular (FAC) 2025-06, effective 27 August 2025 and DFARS Defense Publication Notice Current to DPN: 08 August 2025. (THESE DOCUMENTS/DATES MUST BE UPDATED)

MICC Fort Hood intends to award a Firm-Fixed-Price Contract for a non-personal services contract for the Roman Catholic Religious Education Coordinator function at Fort Hood, Texas. This role involves assisting the Catholic Chaplain and Priest in conducting religious education services in accordance with the guidelines of the Roman Catholic Church, the policies of the Archdiocese for the Military Services, Army Regulation 165-1, and Installation Chaplain Policies outlined in attached performance work statement. North American Industrial Classification System (NAICS) code for this procurement is 813110, (Religious Services), Business Size Standard \$8M. This requirement is a 100% Total Small Business Set-Aside acquisition.

See the performance work statement below for full requirement details.

Your points of contact for this requirement are as follows:

Contract Specialist: Brandi Lewis-Reed, brandi.s.lewis-reed.civ@army.mil

Contracting Officer: Marcellus Newson marcellus.j.newson.civ@army.mil

This **solicitation** will close at **10:00AM Central Time on (DATE 26 January 2026)**. Quotations received after this date and time will be considered late in accordance with FAR 52.212-1(f) and will not be evaluated. The Contracting Officer intends to make an award without discussions; however, that does not prevent the Contracting Officer from holding discussions if it is in the best interests of the government. All quotes must reference and acknowledge all amendments posted to this solicitation, if applicable.

All **questions** must be submitted no later than **12:00 Central Time on (16 January 2025)**, to both the Contract Specialist and the Contracting Officer at the above email addresses. E-mail is the preferred method for questions. Requests shall be marked with solicitation number W91151-26-Q-A013.

Period of Performance: 02 February 2026 to 02 February 2031

Place of Performance: 31ST STREET AND TANK DESTROYER BLVD
FORT HOOD, TX 76544-0000

Place of Delivery:

CHAPLIN BLDG 320 SPIRIT OF FORT HOOD CHAPEL 31ST STREET AND TANK
DESTROYER BLVD
FORT HOOD, TX 76544

The Contractor shall submit all and any other pertinent information for the following Contract Line-Item Numbers (CLINs). Include sufficient detail to evaluate compliance with the requirements in the solicitation.

CLIN	Description	QTY	UI	Unit Price	Total Price
000101	ROMAN CATHOLIC RELIGIOUS ED COORDINATOR FFP ROMAN CATHOLIC RELIGIOUS ED COORDINATOR PERIOD OF PERFORMANCE: FEB 2026- FEB 2031 FOB: Destination PSC CD: R699				
0001	Product Service Description: Religious Education Co Pricing Arrangement: Firm Fixed Price	12	MONTHS		

The following provisions and clauses are applicable to this solicitation and may be reviewed at: <https://acquisition.gov/browse/index/far>

DOCUMENT NUMBER

W9115126QA013

CLAUSES INCORPORATED BY REFERENCE

CLAUSE NO	ALT NO/ DEV NO	CLAUSE TITLE	YEAR-MO	SECTION
252.201-7000		Contracting Officer's Representative.	1991-12	SEC G
252.203-7000		Requirements Relating to Compensation of Former DoD Officials.	2011-09	SEC I
252.203-7002		Requirement to Inform Employees of Whistleblower Rights.	2022-12	SEC I
252.203-7005		Representation Relating to Compensation of Former DoD Officials.	2022-09	SEC K
252.204-7004		Antiterrorism Awareness Training for Contractors.	2023-01	SEC I
252.204-7008		Compliance with Safeguarding Covered Defense Information Controls.	2016-10	SEC K
252.204-7012		Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05	SEC I
252.204-7018		Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01	SEC I
252.204-7019		Notice of NIST SP 800-171 DoD Assessment Requirements.	2023-11	SEC L
252.204-7020		NIST SP 800-171 DoD Assessment Requirements.	2023-11	SEC I
252.204-7022		Expediting Contract Closeout.	2021-05	SEC I
252.204-7024		Notice on the Use of the Supplier Performance Risk System.	2023-03	SEC L
252.219-7012		Competition for Religious-Related Services.	2018-04	SEC L
252.225-7055		Representation Regarding Business Operations with the Maduro Regime.	2022-05	SEC K
252.225-7056		Prohibition Regarding Business Operations with the Maduro Regime.	2023-01	SEC I
252.225-7059		Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	2023-06	SEC K
252.225-7060		Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06	SEC I
252.232-7003		Electronic Submission of Payment Requests and Receiving Reports.	2018-12	SEC G
252.232-7010		Levies on Contract Payments.	2006-12	SEC I
252.237-7010		Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01	SEC I
252.244-7000		Subcontracts for Commercial Products or Commercial Services.	2023-11	SEC I
252.247-7023		Transportation of Supplies by Sea.	2024-10	SEC I
52.201-1		Acquisition 360: Voluntary Survey.	2023-09	SEC L
52.204-13		System for Award Management Maintenance.	2018-10	SEC I
52.204-16		Commercial and Government Entity Code Reporting.	2020-08	SEC L
52.204-18		Commercial and Government Entity Code Maintenance.	2020-08	SEC I
52.204-21		Basic Safeguarding of Covered Contractor Information Systems.	2021-11	SEC I
52.204-7		System for Award Management.	2024-11	SEC L
52.212-1		Instructions to Offerors-Commercial Products and Commercial Services.	2023-09	SEC L
52.212-4		Contract Terms and Conditions-Commercial Products and Commercial Services.	2023-11	SEC I
52.223-5		Pollution Prevention and Right-to-Know Information.	2024-05	SEC I
52.204-29		Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	2023-12	SEC K

CLAUSES IN FULL TEXT

CLAUSE NO	CLAUSE TITLE	ALT NO/ DEV NO	YEAR- MO
CLAUSE TEXT			

252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05
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PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it

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will

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will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.232-7006

Wide Area WorkFlow Payment Instructions.

2023-01

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions*. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing*. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access*. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

INVOICE 2N1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	HQ0490
Issue By DoDAAC	W91151
Admin DoDAAC	W91151
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

*(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

52.212-2 Evaluation-Commercial Products and Commercial Services.

2021-11

Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Lowest Price Technically Acceptable

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.212-3 Offeror Representations and Certifications-Commercial Products
and Commercial Services.

2025-10

Offeror Representations and Certifications-Commercial Products and Commercial Services (Oct 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;

- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"-

Sensitive technology-

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-

- (i) To restrict the free flow of unbiased information in Iran; or
- (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

(1)

(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101 (2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b) (2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this

solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.]

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that-

(i) It
☐ is,
☐ is not a small business concern; or

(ii) It
☐ is,
☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). *[The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(2) *Veteran-owned small business concern.* *[Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it

☐ is,
☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* *[Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.]* The offeror represents that it

☐ is,
☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it

☐ is,
☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. *[Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it

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is,

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is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it

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is,

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is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it

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is,

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is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____ .]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it

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is,

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is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____ .]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it

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is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It

☐

is,

☐

is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It

☐

is,

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is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____*]. Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246-

(1) Previous contracts and compliance. The offeror represents that-

(i) It

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has,

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has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It

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has,

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has not filed all required compliance reports.

(2) *Affirmative Action Compliance*. The offeror represents that-

(i) It

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has developed and has on file,

☐

has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It

☐

has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 <http://uscode.house.gov/U.S.C. 1352>). (Applies only if the contract is expected to exceed \$200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1)

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Are,

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are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2)

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Have,

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have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3)

☐

Are,

☐

are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4)

☐

Have,

☐

have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin
—	—

—	—
---	---

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i)

☐

(ii)

☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1)

☐

In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2)

☐

Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1)

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22.1003-4(c)(1). The offeror

☐

does

☐

does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2)

☐

22.1003-4(d)(1). The offeror

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does

☐

☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

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TIN: ____.

☐

TIN has been applied for.

☐

TIN is not required because:

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Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

class="p">

☐

Offeror is an agency or instrumentality of a foreign government;

☐

Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

☐

Sole proprietorship;

☐

Partnership;

☐

Corporate entity (not tax-exempt);

☐

Corporate entity (tax-exempt);

☐

Government entity (Federal, State, or local);

☐

Foreign government;

☐

International organization per 26 CFR1.6049-4;

☐

Other ____.

(5) *Common parent.*

☐

Offeror is not owned or controlled by a common parent;

☐

Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that-

(i) It

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is,

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is not an inverted domestic corporation; and

(ii) It

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is,

☐

is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it

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has or

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does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity:

☐

Yes or

☐

No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is

☐

is not

☐

a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is

☐

is not

☐

a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it

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is or

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is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name:_____.

(Do not use a "doing business as" name).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals.* Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)].

(i) The Offeror (itself or through its immediate owner or highest-level owner)

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does,

☐

does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner)

☐

does,

☐

does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements

prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It

☐

does,

☐

does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it

☐

does,

☐

does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services. (Alternate I) ALT I 2024-02

Alternate I (FEB 2024). As prescribed in 12.301 (b)(2), add the following paragraph (c)(12) to the basic provision:

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

☐

Black American.

☐

Hispanic American.

☐

Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

☐

Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the

Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).



Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).



Individual/concern, other than one of the preceding.

52.212-5	Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services.	2025-10
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Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (Oct 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]



(1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).



(2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).



(3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)



(4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).



(5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).



(6) [Reserved].



(7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).



(8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).



(9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).



(10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).



(11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).



(ii) Alternate I (DEC 2023) of 52.204-30.



(12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).



(13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).



(14) [Reserved].





(15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).



(16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).



(17) [Reserved]



(18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).



(ii) Alternate I (MAR 2020) of 52.219-6.



(19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).



(ii) Alternate I (MAR 2020) of 52.219-7.



(20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).



(21)

(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).



(ii) Alternate I (NOV 2016) of 52.219-9.



(iii) Alternate II (NOV 2016) of 52.219-9.



(iv) Alternate III (JUN 2020) of 52.219-9.



(v) Alternate IV (JAN 2025) of 52.219-9.



(22)

(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).



(ii) Alternate I (MAR 2020) of 52.219-13.



(23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

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(24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

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(25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

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(26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

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(ii) Alternate I (MAR 2020) of 52.219-28.

☐

(27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

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(28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

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(29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☐

(30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

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(31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

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(32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).

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(33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

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(34)

(i) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

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(ii) Alternate I (FEB 1999) of 52.222-26.

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(35)

(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

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(ii) Alternate I (JUL 2014) of 52.222-35.



(36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).



(ii) Alternate I (JUL 2014) of 52.222-36.



(37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).



(38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).



(39)

(i) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).



(ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).



(40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)



(41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)



(ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)



(42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).



(43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).



(44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).



(45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).



(46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 76711).



(47)

(i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).



(ii) Alternate I (JAN 2017) of 52.224-3.



(48)

(i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).



(ii) Alternate I (OCT 2022) of 52.225-1.



(49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.



(ii) Alternate I [Reserved].



(iii) Alternate II (JAN 2025) of 52.225-3.



(iv) Alternate III (FEB 2024) of 52.225-3.



(v) Alternate IV (Oct 2022) of 52.225-3.



(50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).



(51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).



(52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).



(53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).



(54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).



(55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).



(56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).



(57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).



(58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).



(59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).



(60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).



(61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).



(62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).



(63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).



(64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).



(65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).



(ii) Alternate I (APR 2003) of 52.247-64.



(iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]



(1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).



(2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).



(3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).



(4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).



(5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).



(6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).



(7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).



(8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).



(9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).



(10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this

contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

(B) Alternate I (DEC 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222-26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
(xvi)

(A) 52.222-50, Combating Trafficking in Persons (OCT 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from February 2026 through February 2031[insert dates].

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19

Order Limitations.

1995-10

Order Limitations (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than ____[insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of ____[insert dollar figure or quantity];

(2) Any order for a combination of items in excess of ____[insert dollar figure or quantity]; or

(3) A series of orders from the same ordering office within ____ days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the

ordering office within _____ days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-20

Definite Quantity.

1995-10

Definite Quantity (OCT 1995)

(a) This is a definite-quantity, indefinite-delivery contract for the supplies or services specified, and effective for the period stated, in the Schedule.

(b) The Government shall order the quantity of supplies or services specified in the Schedule, and the Contractor shall furnish them when ordered. Delivery or performance shall be at locations designated in orders issued in accordance with the Ordering clause and the Schedule.

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that time shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after February 2031[insert date].

(End of clause)

52.217-8

Option to Extend Services.

1999-11

Option to Extend Services (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30[insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9

Option to Extend the Term of the Contract.

2000-03

Option to Extend the Term of the Contract (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days[insert the period of time within which the Contracting Officer may exercise the option];

provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days[*60days unless a different number of days is inserted*] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years(months) (years).

(End of clause)

PERFORMANCE WORK STATEMENT (PWS)

CATHOLIC ADMINISTRATIVE RELIGIOUS EDUCATION COORDINATOR

15 December 2025

PART 1 GENERAL INFORMATION

1. General: This is a non-personal service(s) contract under which the personnel rendering the service(s) are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees.

1.1 Description of Services/Introduction: This is a non-personal service(s) contract to provide provide Catholic Administrative Religious Education Coordination services at Fort Hood. This role involves assisting the Catholic Chaplain and Priest in conducting religious education services in accordance with the Roman Catholic Church's guidelines, Archdiocese for the Military Services policies, Army Regulation 165-1, and Installation Chaplain Policies..

1.2 Background: The services fall under the Fort Hood Chaplain's Religious Support Program as defined in the Command Master Religious Program (CMRP). The mission of the Chaplain's Religious Support Program is to provide military religious support activities that meet the religious requirements of Soldiers, Families, and authorized civilians. The primary goal of the Chaplains' Religious Support Program is to ensure the free exercise of religious preference which is a statutory requirement under USC Title 10. As a non-personal services, the Contractor is not a member of the Commander's Staff or Command Chaplain's Staff.

1.3 Scope: The contractor shall provide Catholic Administrative Religious Education Coordinator to the Fort Hood Religious Support Office (RSO). This is a non-personal services contract between the Fort Hood Religious Support Office (RSO) and the Contractor to perform tasks and provide deliverables identified herein. The contractor shall become knowledgeable of the Religious Education (RE) Program through the review of SOPs, program schedules, Concept of Operations, etc. The contractor shall attend and participate in required meetings scheduled by the Parish in order to gain and provide information pertaining to RE. The contractor shall become knowledgeable of the Religious Education (RE) Program through the review of SOPs, program schedules, Concept of Operations, etc. The contractor shall prepare and provide a monthly calendar of all RE events to include special seasonal events. The contractor shall prepare and track multiple documents pertaining to RE programs during regular and seasonal time periods. Documents include the facility reservation request form, RE flyers and the attendance reports. The contractor shall assist in the preparation of program materials for regular and seasonal RE programs. This assistance includes making copies, distribution of supplies and materials and resetting the space used at the conclusion of the RE program activities. All services should be conducted in alignment with the Archdiocese for Military Service (AMS) requirements defined in Part 4 of this PWS.

1.4 Objectives: The Contractor shall support comprehensive Catholic religious education programs which run concurrently with the traditional academic year (AY). The Contractor shall support and facilitate Catholic religious education activities as specified in the PWS. The Contractor shall serve as a Chaplain Corps' special resource person who provides program support functions. The contract service provider shall consult and coordinate with the Catholic priest endorsed by the Archdiocese for the Military Services (AMS) and Garrison RSO personnel (Garrison Chaplain, Director of Religious Education, or other assigned staff).

1.5 General Information:

1.5.1 Quality Control Plan (QCP): The Contractor shall develop and maintain a Quality Control Plan (QCP) to ensure services are performed in accordance with (IAW) this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's QCP is how it assures that the work provided complies with the requirements of the contract.

The Contractor's proposed QCP shall be submitted to the Contracting Officer (KO) through the Contracting Officer's Representative (COR) for review within ten (10) workdays after date of contract award (Deliverable A.001). After acceptance of the Quality Control Plan the Contractor will receive the Contracting Officer's acceptance in writing of any proposed change to his QC plan.

1.5.2 Quality Assurance: The Government will evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP) and the Performance Requirements Summary (PRS). This plan is primarily focused on what the Government will do to ensure that the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.5.3 Recognized Holidays: Work shall not be performed on U.S. federally recognized holidays occurring during the normal workweek unless otherwise requested by the Contracting Officer. When a U.S. holiday occurs on a Saturday or a Sunday, the holiday is observed on the preceding Friday or following Monday, respectively.

New Year's Day	1 January
Martin Luther King Day	3rd Monday in January
Presidents' Day	3rd Monday in February
Memorial Day	last Monday in May
Juneteenth	3 rd Monday in June
Independence Day	4 July
Labor Day	1st Monday in September
Columbus Day	2nd Monday in October
Veterans' Day	11 November
Thanksgiving Day	4th Thursday in November
Christmas Day	25 December

1.5.4 Government Hours of Operation: Government business hours are between 0700-1700 Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. Religious Support Office programming may be conducted outside of normal government business hours. The Contractor shall maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of services are essential.

This contract does not require a traditional full-time Monday through Friday 9:00 to 5:00 type work environment. Workdays and hours will vary according to the approved Calendar of Events, tasks outlined in the CLINs and the time of meetings. Some tasks may require holiday, evening, and weekend hours.

1.5.5 Place of Performance: The services to be performed under this contract shall be performed at Fort Hood.

1.6 Security Requirements: The following information is provided on security related matters.

1.6.1 Access and General Protection/Security Policy and Procedures. The Contractor and all associated subcontractors shall comply with applicable installation, facility, and area commander installation/facility access and local security policy and procedures (provided by Government representative). The Contractor shall provide all information required for background checks to meet installation-access requirements to be accomplished by the installation provost marshal office, director of emergency services, or security office. The Contractor shall comply with all personal identity verification requirements as directed by DOD, HQDA, and local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the force protection condition (FPCON) at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

1.6.2 Background Checks: A Tier 1 with State Criminal History Repository (SCHR) is required for Catholic Administrative Religious Education Coordinator.

1.6.2.1 In accordance with Department of Defense Instruction (DODI) 1402.05 and [Army Directive 2014-23](#), each individual working with children under the age of 18 in conjunction with this contract must successfully complete the Tier 1 with SCHR background check. Failure to complete the criminal history background check shall result in termination of the contract.

1.6.2.2 The background check will be initiated and paid for by the government will be accomplished after award of the contract. The Fort Hood RSO Functional Manager will provide requisite forms and coordination at the award meeting. The Contractor shall provide completed background check forms to the COR NLT 10 days after the award (Deliverable A.002).

1.6.2.3 Contractor personnel may begin work with children under the age of 18 under Line of Sight Supervision (LOSS) after the receipt of a favorable Interim Suitability determination. Contractor personnel may begin working without LOSS following the receipt of a favorable final suitability determination. The Fort Hood RSO Functional Manager will notify the COR and Contractor of favorable or unfavorable suitability determinations or derogatory information within 3 business days of receipt.

1.6.2.4 No person, regardless of circumstances, will be approved to work with children if the individual has been convicted of a sexual offense, a drug felony, a violent crime, or a criminal offense involving a child or children. If the background check investigation reveals any other derogatory information a suitability determination has to be made by the Army. The adjudication of derogatory information is processed through an Army Program Review Board (PRB). Further details about the adjudication process can be found in Enclosure 6 of the AD 2014-23. At any time a Contractor can decide not to proceed with the PRB process. For additional information on the background check process, visit the US Office of Personnel Management at <http://www.opm.gov>.

1.6.2.5 Re-verification of background checks (IRC and FBI fingerprint check) is required every 5 years.

1.6.3 Physical Security: The Contractor shall safeguard all Government equipment, information, and property provided for Contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

1.6.4 Key Control: The Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. NOTE: All references to keys include key cards. Keys issued to the Contractor by the Government may not be duplicated. The Contractor shall develop procedures covering key control that shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost keys to the Contracting Officer.

1.7 Post Award Conference/Periodic Progress Meetings: The Contractor shall attend all post award conference convened by the contracting activity or contract administration office in accordance with FAR Subpart 42.5. The Contracting Officer, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the Contracting Officer will apprise the Contractor of how the Government views the Contractor's performance and the Contractor shall apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.8 Contracting Officer's Representative (COR): Refer to Part 2 of this PWS for the definition of a COR. As determined by the Contracting Officer, a COR will be appointed and identified by letter of designation, a copy of which will be provided to the Contractor by the Contracting Officer. The designation letter states the responsibilities and limitations of the COR. Basically, the COR monitors all technical aspects of the contract and assists in contract administration. The COR is not authorized to change any of the terms and conditions of the contract nor authorized to obligate the Government. If the work is not written in the contract, the COR is not authorized to request new work.

1.9 Key Personnel: The Contractor shall provide a Primary Point of Contact (POC) who shall be responsible for the overall management, performance and coordination of this contract. The Primary POC shall act as the central point of contact with the Government. The Primary POC shall have signature authority for contract-related documents and make independent decisions concerning the performance of the contract to include personnel staffing, work beyond normal operating hours and contract negotiations. An Alternate shall be designated to act in the same capacity as the Primary POC during his/her absence. The Contractor shall provide a Catholic Administrative Religious Education Coordinator who shall be responsible for performing the tasks in this contract. The name of this person and an alternate POC, who shall act for the Contractor when the Primary POC is absent, shall be provided in writing to the COR at post-award meeting (Deliverable A.003).

The Catholic Administrative Religious Education Coordinator must be able to obtain a Catechist certification from the Archdiocese for the Military Services within 90 days of contract award. Experience in military Catholic religious support programs is preferred but not required. Contractor personnel shall possess the ability to present information orally and in written format (i.e., emails, minutes, bulletins, advertising, and marketing). Ability to speak English clearly and with excellent comprehension is essential. The Contractor must be computer competent in Windows based operating systems and be proficient with Microsoft Office software (Word, Excel, Outlook, and Power Point software). The contractor shall have the disposition for working in a pluralistic environment where they may interact with members from various faith groups and/or viewpoints. Contractor shall be professional and not denigrate individuals with a different religious perspective or viewpoint.

All Contractor personnel shall communicate and behave with etiquette in the workplace that is indicative of respectful and courteous professional manner befitting US military religious support activities. Contractor personnel shall refrain from using offensive language such as swearing, cursing, disparaging language, and other such communications.

1.10 Identification of Contractor Employees: All Contractor personnel attending meetings, answering Government telephones, and working in other situations where their Contractor status is not obvious to third parties must identify themselves, to include proper marking of signature blocks in correspondence, to avoid creating an impression in the minds of members of the public that they are Government officials. The Contractor shall ensure that all documents or reports, produced by Contractors are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

1.11 Contractor Identification Badges: Contractor personnel shall be easily identifiable through the display of badges IAW Contractor Identification (AE Reg. 27-715). Contractor employees or representatives will always, be clearly identified as such and shall be distinct from Government personnel. Contractor employees shall not act, advertise, or willfully appear to contractor labor Government employees, agents, or representatives. Contractor employees are required to appropriately identify themselves as Contractor employees. Contractor employees will be introduced as Contractor personnel and shall wear Contractor furnished identification badges that display the employees name, photograph and company name in a conspicuous place on exterior clothing, above the waist, except when safety or health reasons prohibit.

1.12 Data Rights: The Government has unlimited rights to all documents and materials produced under this contract. All documents and materials, to include the source codes of software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of ownership and copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the Contractor without written permission from the Contracting Officer. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

1.13 Phase In /Phase Out Period: The Contractor shall provide a phase in/phase out plan 30 days prior to the end of the contracting period.

1.14 Required Training: The following provides information on training requirements.

1.14.1 Anti-Terrorism (AT) Level I Training: All Contractors, including subcontractors, requiring access to Army installations, facilities, and controlled-access areas shall complete AT Level I awareness training within 45 calendar days after the contract start-date or effective date of incorporation of this requirement into the contract, whichever is applicable (Deliverable A.004). The Contractor shall submit certificates of completion for each affected contractor's and subcontractor's employee to the KO via the COR, upon training completion. AT Level I awareness training is available online at <https://jkodirect.jten.mil>.

1.14.2 OPSEC Training: All Contractor employees, including subcontractors, shall complete OPSEC "Level I" training within 30 days of employment under this contract. Verification of the training shall be provided to the COR upon completion of the training (Deliverable A.005) .

OPSEC “Level I” training is available at Army Training Information System (ATIS) <https://learn.atis.army.mil/>. Contractor personnel must complete refresher training every 12 months. Verification of the training shall be provided to the (A)COR within **five (5) days** after completion of the training

1.14.3 iWATCH Training: The Contractor and all associated sub-contractors shall brief all employees on the local iWATCH program (training standards provided by the requiring activity ATO). This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance (Deliverable A.006). Training slides can be found on the Army OneSource we site:
<http://www.myarmyonesource.com/familyprogramsandservices/iwatchprogram/default.aspx>

1.14.4 Information Assurance (IA) Training *(As required on the AT/OPSEC Cover Sheet)*

1.14.4.1 All Contractor employees, including subcontractors, requiring access to Government information systems shall complete the DoD IA Cyber Awareness Training within within 30 days of employment under this contract. Verification of the training shall be provided to the COR upon completion of the training (Deliverable A.007) .

1.14.4.2 All Contractor employees, including subcontractors, working information technology (IT)/IA functions shall comply with DoD and Army training requirements per Information Assurance Training Certification and Workforce Management DoD Directive (DoDD) 8570.01, Information Assurance Workforce Improvement Program DoD 8570.01-M, and Information Assurance AR 25-2 within thirty (30) calendar days of employment (Deliverable A.008). Training is available at <https://ia.signal.army.mil/DoDIAA/default.asp> .

1.14.5 Personally Identifiable Information (PII): Contractor employees, including subcontractors, performing services under this contract with access to PII and Government information shall complete “Identifying and Safeguarding PII” within 30 calendar days of employment. Contractor personnel shall complete refresher training every twelve (12) months from initial completion. The Contractor shall provide proof of training to the COR upon completion (Deliverable A.009). Training is available at <http://iatraining.disa.mil/eta/piiv2/launchPage.html>

1.14.6 Child Protection Training: Contractor employees have regular and recurring contact or access to children under the age of 18 and must complete child protection initially and then every 12 months as directed in AD 2014-23. Child protection training is provided or coordinated by the Garrison. The Contractor will coordinate with the COR to complete the training within 30 days of the award of contract and then every 12 months. The Contractor shall provide proof of training to the COR upon completion (Deliverable A.010).

1.15 Government Property and Services: Performance is at a Government Facility. Therefore, FAR Part 45.000(b)(5) applies. Specifically, Government property that is incidental to the place of performance, when the contract requires contractor personnel to be located on

a Government site or installation, and when the property used by the contractor within the location remains accountable to the Government. Items considered to be incidental to the place of performance include, for example, office space, desks, chairs, telephones, computers, and fax machines. The Government will provide musical instruments although not specifically meeting the definition of GFP/GFE under the above cited FAR reference.

The Contractor shall be liable for the loss, damage or destruction except for fair wear and tear, of Government property. The Contractor shall repair or replace any item damaged while in his/her possession.

PART 2 DEFINITIONS & ACRONYMS

2. Definitions and Acronyms

2.1 Definitions: Although not inclusive of every term used within this PWS, the following provides a list of definitions used throughout this PWS and commonly used in the acquisition field.

Acceptable Quality Level (AQL) – The maximum percentage or allowable deviation that can be considered satisfactory on average. It is the allowable deviation from a standard before the Contracting Officer will reject the specific service. An AQL does not imply that the Contractor may knowingly perform in an unsatisfactory manner, but rather exerts a realization that perfect performance is not possible.

Alternate Contracting Officer's Representative (ACOR) – See Contracting Officer's Representative. Allowed to perform COR tasks in the absence of the COR. Any references to (A)COR should be assumed to mean both unless advised otherwise.

Contracting Officer – means a person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR) – As defined in DFARS 202.101, means an individual designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions. DoD Instruction (DoDI) 5000.72, Part II Definitions states the following when defining a COR: "Defined in subpart 202.101 of Reference (f). Any individual delegated responsibilities pursuant to subpart 1.602-2 of Reference (e), regardless of local terminology, must be certified in accordance with this instruction. For example, local terminology can be COR, Contracting Officer's technical representative, technical point of contact, technical representative, alternate COR, administrative COR, assistant COR, line item manager, task order manager, quality assurance personnel, quality assurance evaluator, or COR management." In addition, Army Regulation 70-13, Chapter 2, paragraph 2-2g, states, in part, the following when providing other surveillance support personnel to assist the COR when needed, "These other surveillance support personnel may serve as on-site representatives of the COR in performance of actual contract surveillance if they meet all COR requirements and have been appointed by the Contracting Officer as alternate CORs."

Contractor – A supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

CONTRACTOR-ACQUIRED PROPERTY – Property acquired, fabricated, or otherwise provided by the Contractor for performing a contract to which the Government has title.

CORRECTIVE ACTION REPORT (CAR) – A report initiated by the Government, which the Contractor is required to complete, whenever performance is unsatisfactory. The CAR requires the Contractor to explain in writing why performance was unsatisfactory, how performance will be returned to satisfactory levels, and the corrective action that will be taken to prevent recurrence.

Day – means, unless otherwise specified, a calendar day.

Defective Service – means a service output that does not meet the standard of performance associated with the Performance Work Statement.

Deliverable – means anything that can be physically delivered, but may include non-manufactured things such as meeting minutes or reports.

Government-Furnished Property - As reflected in FAR 52.245-1, Government-furnished Property “means property in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a Deliverable under a cost contract when accepted by the Government for continued use under the contract.

Government Property - All property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

High Level Objective (HLO) - A key overarching result-based objective for a project necessary to achieve the project’s vision. HLOs are similar to Level 2 in a Work Breakdown Structure. Each HLO may contain several statements to flesh out the areas necessary to meet the objective.

Key Personnel - Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

Physical Security – means that part of security concerned with physical measures designed to safeguard personnel; to prevent unauthorized access to equipment, installations, material, and documents; and to safeguard against espionage, sabotage, damage, and theft.

Quality Assurance – (or Government contract quality assurance) means the various functions, including, inspection, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

Quality Assurance Surveillance Plan (QASP) – The key Government-developed surveillance process document, and is applied to Performance-Based Service Contracting (PBSC). The QASP is used for managing Contractor performance assessment by ensuring that systematic quality assurance methods validate that Contractor quality control efforts are timely, effective, and are delivering the results specified in the contract or task order. The QASP directly corresponds to the performance objectives and standards (i.e., quality, quantity, timeliness) specified in the Performance Work Statement (PWS). It provides specific details on how the Government will survey, observe, test, sample, evaluate, and document Contractor performance results to determine if the Contractor has met the required standards for each objective in the PWS. The QASP, with very few if any exceptions, is an internal to Government document.

Quality Control – All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

Statement – The specific results-based activities required to satisfy HLOs. A statement contains a result, the context of the statement, and the required action(s). Statements focus on “what” is to be accomplished; however they are not prescriptive in describing “how” the outcome is to be achieved. Each HLO may have several statements to flesh out the areas necessary to meet the objective. Statements are similar to Level 3 in a Work Breakdown Structure.

Subcontractor – means one that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

Work Day - The number of hours per day the Contractor provides services in accordance with the contract.

Work Week - Monday through Friday, unless otherwise specified.

2.2 Acronyms: Although not inclusive of every term used within this PWS, or that may be included in an acquisition, the following provides a list of acronyms commonly used in the acquisition field.

ACOR	Alternate Contracting Officer's Representative
AFARS	Army Federal Acquisition Regulation Supplement
AQL	Acceptable Quality Level
AHA	Activity Hazard Analysis
AR	Army Regulation
AT	Anti-terrorism
ATCTS	Army Training Certification Tracking System
CAC	Common Access Card
CFR	Code of Federal Regulations
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer's Representative
COTS	Commercial-Off-the-Shelf

DA	Department of the Army
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DoD	Department of Defense
FAR	Federal Acquisition Regulation
GFP	Government Furnished Property
HIPAA	Health Insurance Portability and Accountability Act of 1996
HQDA	Headquarters, Department of the Army
ID	Identification
IGCE	Independent Government Cost Estimate
IT	Information Technology
KO	Contracting Officer
OCI	Organizational Conflict of Interest
ODASA(P)	Office of the Deputy Assistant Secretary of the Army for Procurement
OPSEC	Operations Security
PA	Property Administrator
PII	Personally Identifiable Information
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Plan
RA	Requiring Activity
TARP	Threat Awareness and Reporting Program
TE	Technical Exhibit

PART 3
CONTRACTOR FURNISHED ITEMS AND SERVICES

Brown, Lauren E CIV USARMY IMCOM HQ (USA)
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does it need a placeholder that says
"reserved?"

3. Contractor Furnished Property and Services

3.1 General: The Contractor shall furnish all supplies, equipment, facilities, and services required to perform work under this contract that are not listed under Section 3 of this PWS.

3.2 Secret Facility Clearance: RESERVED.

3.3. Materials. RESERVED

3.4. Equipment. RESERVED

3.5 Background Checks: The Contractor shall provide Background Checks in accordance with this PWS and as determined by the Government.

PART 4 SPECIFIC TASKS

4. Specific Tasks:

4.1. Meeting Participation: The Contractor shall attend 100% of required meetings in order to gather program information for the completion of Catholic Administrative Religious Education Coordination tasks (Para 4.2-4.5).

4.2. Monthly Calendar: The Contractor shall provide a monthly Catholic Religious Education calendar to COR NLT the final business day of the preceding month (ex: April calendar provided by the final business day of March) (Deliverable A.011). The Catholic Religious Education Calendar should include regular and seasonal Religious Education (RE) events, Chapel and Catholic community events, holiday closures and special Holy days.

4.3. Preparation for Religious Education Classes: The Contractor shall prepare facility reservation request forms, develop flyers for RE programs, and track weekly RE program attendance to coordinate support of the RE program during regular and seasonal RE program periods. Seasonal period programs include Advent, Christmas, Lent, Easter, Vacation Bible School, RE Kickoff. The Contractor shall submit prepared facility reservation requests for approval by the Priest or other Chaplain sponsor to the COR and Priest/Sponsor NLT 45 days prior to the service or event (Deliverable A.012). The Contractor shall prepare publicity flyers for all special services and events and submit to the COR and Priest/Sponsor NLT 45 days prior to the service or event (Deliverable A.013). The RE program attendance report shall be submitted to the COR NLT the first business day of the month (Deliverable A.014). These items will correspond with the Religious Education calendar and details as provided in monthly meetings (Para 4.1 and 4.2.).

4.4. Preparation of Program Materials: The Contractor shall format and organize the program materials (curriculum and corresponding supplies) provided by the Priest, Director of Religious Education or other government employee for RE programs weekly during regular and seasonal RE program periods. This preparation and organization of materials shall include making copies, distributing supplies/materials to learning spaces, and reset of classrooms or RE spaces at conclusion of the program. These items will correspond with the Religious Education calendar, program documents, and details as provided in monthly meetings (Para 4.2.). The Contractor shall submit a report of consumed materials and supplies NLT the first business day of the month (Deliverable A.015).

4.5. Preparation of Sacramental Records: The Contractor shall collect all supporting documentation (birth certificates, Baptism and First Communion certificates, etc.) from eligible members of the Catholic Community who are preparing to receive a Sacrament. The Contractor shall accurately prepare the corresponding AMS record in the AMS portal by preparing the document online, attaching all supporting documents and saving the record for certification and signature by the Priest (Deliverable A.016).

4.6. Quarterly Meeting Attendance and Designated Representative: The Contractor shall ensure that a designated company representative with decision-making authority attends

100% of quarterly meetings as scheduled by the Government. This representative must be consistent across meetings to ensure continuity and program alignment. The Contractor shall notify the COR in writing of the designated representative's name and contact information within 10 business days of contract award and shall provide written notification of any changes to this designation NLT 5 business days prior to the next scheduled meeting (Deliverable A.017). The Contractor shall submit a quarterly meeting attendance record to the COR NLT 5 business days after each quarterly meeting (Deliverable A.018)

4.7. Communication Responsiveness:

The Contractor shall respond to all Government calls and emails within 48 hours of receipt during normal business days (Monday-Friday). If a call or email is received on a weekend (Saturday-Sunday) or Federal holiday, the Contractor shall respond within 72 hours.

Responses must come directly from the designated company representative or an authorized alternate identified in writing to the COR meeting (Deliverable A.017).

PART 5 APPLICABLE PUBLICATIONS

5. Applicable Publications (Current Editions): The following publications, manuals, regulations, etc. are mentioned in this PWS and are listed below.

- 5.1** Information Assurance Workforce Improvement Program (DoD 8570-M)
- 5.2** Information Assurance Training Certification and Workforce Management Directive (DoDD 8570.01)
- 5.3** Information Assurance (AR 25-2)
- 5.4** Army Regulation, AR 165-1, Army Chaplain Corps Activities.
- 5.5** Garrison Installation Chaplain Standard Operating Procedures (SOPs).
- 5.6** Archdiocese for the Military Services (AMS) Priests' Manual dated 20 August 2008
- 5.7** Army Directive 2014-23 (AD 2014-23)
- 5.8** Department of Defense Instruction 1402.05 (DoDI 1402.05)
- 5.9** Archdiocese for the Military Services (AMS) Curriculum Guide, *"Forming Disciples for the New Evangelization"*

PART 6
ATTACHMENT AND TECHNICAL EXHIBIT LISTING

6. Attachment and Technical Exhibit List

6.1 Technical Exhibit A – Performance Requirements Summary (PRS)

6.2 Technical Exhibit B – Deliverables Schedule

6.3 Attachment 1 – Estimated Hourly Workload Per Year

TECHNICAL EXHIBIT A

Performance Requirements Summary (PRS)

The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective	Standard	Acceptable Quality Levels (AQLs)	Incentive/Discentive
Combating Trafficking in Persons FAR 52.222-50c	The Contractor shall Notify its employees of The United States Government's zero tolerance policy described in paragraph (b) of this clause The actions that will be taken against employees for violations of this policy. Such actions may include, but are not limited to, removal from the contract, reduction in benefits, or termination of employment.	100% Compliance	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPAR system; contractor shall re-perform the service
Attended Meetings (PWS Part 4.1)	Contractor attended planning and coordination meetings and provided necessary input for services.	95% Compliance	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPAR system; contractor shall re-perform the service
Provide Monthly Catholic Administrative Religious Education (RE) calendar that includes RE programs, community events, and special Holy days. (PWS Part 4.2)	Monthly Calendar submitted to COR NLT the final business day of the preceding month.	100% Compliance	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPAR system; contractor shall re-perform the service
Contractor shall prepare forms, develop flyers, and report weekly attendance for regular RE classes and seasonal RE events. (PWS Part 4.3)	Facility reservation forms and program flyer to Priest and COR NLT 45 days prior to event. Attendance report to COR NLT the 1st business day of the month. All data on forms, flyers, and reports is accurate.	100% Compliance	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPAR system; contractor shall re-perform the service

Contractor shall prepare program materials for weekly and seasonal RE events, and report consumed materials monthly. (PWS Part 4.4)	Supplies required to execute curriculum are prepared and in the classroom 30 minutes prior to the start of the program. Monthly Report of Consumed Materials to COR NLT the 1st business day of the month	100% Compliance	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPAR system; contractor shall re-perform the service
Contractor shall prepare Sacramental records in the AMS portal (PWS Part 4.5)	Collect supporting documents, accurately prepare the AMS record in the AMS portal, upload supporting documents and save the record for certification by the Priest. All records should be complete within 30 days of the ministration of the Sacrament.	100% Compliance	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPAR system; contractor shall re-perform the service
Contractor shall ensure a designated company representative with decision-making authority attends quarterly meetings (PWS Part 4.6)	The same designated representative attends 100% of quarterly meetings. Notify COR of representative within 10 business days of contract award and NLT 5 business days prior to any change. Submit quarterly attendance record NLT 5 business days after meeting.	100% Compliance	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPAR system; contractor shall re-perform the service.
Contractor shall respond to Government communications in a timely manner (PWS Part 4.7)	Respond to calls/emails within 48 hours (business days) or 72 hours (weekends/holidays). Submit monthly communication response log NLT the first business day of the month.	100% Compliance	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPAR system; contractor shall re-perform the service

TECHNICAL EXHIBIT B

Deliverables Schedule

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
(A.001) Contractor's Proposed QCP (Part 1.5.1)	Within ten (10) workdays after date of contract award	1	Microsoft Office/Email	KO and COR
(A.002) Background Check Request Forms for each individual performing services (Part 1.6.2)	Within ten (10) workdays after date of contract award	1	Microsoft Office/Email	KO and COR
(A.003) Key Personnel list with contact information (Part 1.9)	At post award meeting	1	Microsoft Office/Email	KO and COR
(A.004) AT Level I Training (Part 1.14.1)	Within 45 calendar days after the contract start-date or effective date	1	Microsoft Office/Email	KO and COR
(A.005) OPSEC Training (Part 1.14.2)	Within 30 calendar days of employment under this contract	1	Microsoft Office/Email	COR
(A.006) iWatch Training (Part 1.14.3)	Within 30 calendar days of employment under this contract	1	Microsoft Office/Email	COR
(A.007) Cyber Awareness Training (Part 1.14.4.1)	Within 30 calendar days of employment under this contract	1	Microsoft Office/Email	COR
(A.008) Information Assurance Training (Part 1.14.4.2)	Within 30 calendar days of employment under this contract	1	Microsoft Office/Email	COR
(A.009) PII Training (Part 1.14.5)	Within 30 calendar days of employment under this contract	1	Microsoft Office/Email	COR
(A.010) Child Protection Training (Part 1.14.6)	Within 30 calendar days of employment under this contract	1	Microsoft Office/Email	COR
(A.011) Monthly Catholic Administrative Religious Education Calendar (Part 4.2)	NLT the final business day of the preceding month	1	Microsoft Office/Email	COR, Priest, DRE
(A.012) Facility reservation Forms (Part 4.3)	NLT 45 days prior to the event	1	Microsoft Office/Email	COR, Priest, DRE
(A.013) RE Program Publicity Flyers (Part 4.3)	NLT 45 days prior to the event	1	Microsoft Office/Email	COR, Priest, DRE
(A.014) Monthly Report of Weekly RE program attendance (Para. 4.3)	NLT the first business day of the month.	1	Microsoft Office/Email	COR, Priest, DRE
(A.015) report of consumed materials and supplies (Part 4.4)	NLT the first business day of the month	1	Microsoft Office/Email	COR

(A.016) Sacramental records and supporting document (Part 4.5)	NLT 30 days after the ministration of the Sacrament	As needed	AMS Portal	Priest
(A.017) Designated Company Representative Notification (Part 4.6)	Within 10 business days of contract award; NLT 5 business days prior to any change	1	Microsoft Office/Email	COR
(A.018) Quarterly Meeting Attendance Record (Part 4.6)	Quarterly, NLT 5 business days after meeting	1	Microsoft Office/Email	COR

ATTACHMENT ESTIMATED HOURLY WORKLOAD PER YEAR

ITEM	PWS	TASK NAME	Frequency	Estimated Hours	Total Estimated Hours
1	PWS 4.1	Meeting Participation	52	2.0	104
2	PWS 4.2	Monthly Calendar	12	1.5	18
3	PWS 4.3	Preparation for Religious Classes	52	4	208
4	PWS 4.3	Seasonal Preparation for Religious Classes	6	6	36
5	PWS 4.3	Report of Consumed Materials	12	1.0	12
6	PWS 4.4	Preparation of Program Materials	36	3	108
7	PWS 4.4	Seasonal Preparation of Course Materials	6	5	30
8	PWS 4.5	Preparation of Sacramental Records	12	20	240
9	PWS 4.6	Quarterly Meeting Attendance and Designated Representative Notification	4	2.0	8